

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: June 5th, 2026

Posted: June 4th, 4:30 PM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appeareances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department C16 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 10:00 a.m. on Friday, check-in online via the Court's civil video appearance website at [Civil Appearance Procedure and Information | Superior Court of California | County of Orange \(occourts.org\)](https://www.occourts.org); (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (<https://www.occourts.org/system/files/hr/div3.pdf>.)

#	Case Name	Tentative
50	Kruger vs. Alicia Surgery 26-01541621	Demurrer to Complaint Defendant Alica Surgery Center, LLC demurs to the Complaint filed by Plaintiff Stephen Kruger and its first through fifth causes of action. The demurrer is SUSTAINED as to the first, third, fourth, and fifth causes of action. The demurrer is OVERRULED as to the second cause of action. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 30 days of service of notice of ruling. Plaintiff is reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) <u>First Cause of Action for Assault and Battery</u> The tort of "assault is based upon an invasion of the right of a person to live without being put in fear of personal harm." (<i>Lowry v. Standard Oil Co. of California</i> (1944) 63 Cal.App.2d 1, 7.) "The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 668–669, <i>as modified on denial of reh'g</i> (Jan. 28, 2013).) The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. (<i>So, supra</i>, 212 Cal.App.4th at p. 669.) The first cause of action alleges Defendant employed a man named Ernest de los Santos and permitted de los Santos to approach, assault, and batter Plaintiff. (Compl. ¶¶ 8, 10, 13.) Although a complaint may allege ultimate rather than evidentiary facts (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 550), courts do not consider conclusory factual or legal allegations. (<i>B & P Development Corp. v. City of</i>

	<i>Saratoga</i> (1986) 185 Cal.App.3d 949, 953.) Here, the allegations are conclusory and fall short of pleading ultimate facts showing that Defendant touched Plaintiff with the intent to harm or offend Plaintiff and that a reasonable person in Plaintiff’s position would be offended by the touching. Similarly, the Complaint alleges, in conclusory fashion, that de los Santos assaulted Plaintiff. Ultimate facts demonstrating that Defendant acted with intent to cause harmful or offensive contact, or threatened to touch Plaintiff in a harmful or offensive manner are missing. The demurrer is sustained as to the first cause of action. <u>Second Cause of Action for Failure to Provide Considerate and Respectful Care</u> Section 70707 of Title 22 of the California Code of Regulations (“Section 70707”) provides, in pertinent part, that the hospital must adopt and post a policy on patients’ rights. The posted list “shall include but not be limited to the patients’ rights to: ... [¶] (2) Considerate and respectful care.” Subsection (c) of Section 70707 provides that “[a] procedure shall be established whereby patient complaints are forwarded to the hospital administration for appropriate response” while subsection (d) states that “[a]ll hospital personnel shall observe these patients’ rights.” The Complaint does not allege that Section 70707 provides a private cause of action for violation of the regulation. Thus, the court will assume Plaintiff is pursuing a negligence claim and is relying on the violation of Section 70707 to establish the duty element of his negligence cause of action. To establish a claim for negligence, Plaintiff must allege the elements of “ ‘a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.’ ” [Citation.]” (<i>Novak v. Continental Tire North America</i> (2018) 22 Cal.App.5th 189, 195.) The Complaint alleges Defendant had a duty to provide Plaintiff with “considerate and respectful care” while he was in the surgery center, that Defendant breached its duty of care by permitting de los Santos to approach, assault, and batter Plaintiff, that Plaintiff was caused harm by Defendant. (Compl. ¶¶ 15-18.) These allegations are sufficient to allege a cause of action for negligent failure to provide considerate and respectful care. The demurrer is overruled as to the second cause of action. <u>Third Cause of Action for Violation of Right to Privacy</u> California Constitution, article I, section 1, provides, “All people are by nature free and independent and have inalienable rights. Among these are enjoying and defending life and liberty, acquiring, possessing, and protecting property, and pursuing and obtaining safety, happiness, and privacy.” “The party claiming a violation of the constitutional right of privacy established in article I, section 1 of the California Constitution must establish (1) a legally protected privacy interest, (2) a reasonable expectation of privacy under the circumstances, and (3) a serious invasion of the privacy interest. [Citations.]” (<i>Sheehan v. San Francisco 49ers, Ltd.</i> (2009) 45 Cal.4th 992, 998.) The Complaint alleges Plaintiff had a right to privacy in the surgical cubicle he occupied and that only authorized persons would enter. (Compl. ¶¶ 22-23.) Plaintiff’s right to privacy was breached when de los Santos, an unauthorized
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	person, entered the surgical cubicle and approached, assaulted, and battered Plaintiff. (<i>Id.</i> at ¶ 24.) Plaintiff has not shown that he has a legitimate, objectively reasonable expectation of privacy in a space where people, if authorized, may enter. Additionally, “ ‘actionable invasions of privacy must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right. Thus, the extent and gravity of the invasion is [<i>sic</i>] an indispensable consideration in assessing an alleged invasion of privacy.’ ” (<i>Mathews v. Becerra</i> (2019) 8 Cal.5th 756, 779.) “ ‘[W]hether [a] defendant’s conduct constitutes a serious invasion of privacy [is a] mixed question[] of law and fact. If the undisputed material facts show ... an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law.’ ” (<i>Folgelstrom v. Lamps Plus, Inc.</i> (2011) 195 Cal.App.4th 986, 990.) Here, the Complaint does not allege facts which demonstrate an egregious breach of the norms underlying the privacy right. Although de los Santos’s alleged assault and battery on Plaintiff is egregious, the allegations are not sufficient to show a serious invasion of Plaintiff’s privacy. The demurrer is sustained as to the third cause of action. <u>Fourth Cause of Action for Violation of Hospital Rights</u> Section 883 of Title 9 of the California Code of Regulations (“Section 883”) provides the basis for the fourth cause of action for violation of hospital rights. (Compl. ¶ 29.) Section 883 is titled “Non-LPS Patients’ Rights—Non-Deniable” and is part of Chapter 4.5, which “applies to patients’ rights and related procedures for all non-Lanterman-Petris-Short Act (LPS) patients placed in or committed to a treatment program in a Department of Mental Health facility, except when transferred to or placed in a federally certified program.” (Cal. Code Regs., tit. 9, § 880.) “The LPS [Lanterman-Petris-Short] Act governs the involuntary detention, evaluation, and treatment of persons who, as a result of mental disorder, are dangerous or gravely disabled.” (<i>Conservatorship of John L.</i> (2010) 48 Cal.4th 131, 142.) The Complaint does not allege that Plaintiff was placed in or committed to a treatment program in a Department of Mental Health facility. Accordingly, Section 883 is not applicable. The demurrer is sustained as to the fourth cause of action. <u>Fifth Cause of Action for Negligent Training and Supervision of Employee</u> An employer may be directly liable for negligent supervision and retention “if it ‘knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.’ ” (<i>Phillips v. TLC Plumbing, Inc.</i> (2009) 172 Cal.App.4th 1133, 1139.) “To establish negligent supervision, a plaintiff must show that a person in supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (<i>Z.V. v. County of Riverside</i> (2015) 238 Cal.App.4th 889, 902; see <i>Diaz v. Carcamo</i> (2011) 51 Cal.4th 1148, 1157 [“Awareness, constructive or actual, that a person is unfit or incompetent [for the work] underlies a claim that an employer was negligent in hiring or retaining that person”].) The Complaint alleges Defendant had a duty to hire, train, and supervise de los Santos so that he would act in a manner consistent with Plaintiff’s rights as a
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		patient. (Compl. ¶ 37.) Defendant breached its duty by allowing de los Santos to violate Plaintiff's rights as a patient and Plaintiff was harmed. (<i>Id.</i> at ¶¶ 38-39.) The Complaint fails to allege that Defendant had knowledge of de los Santos's unfitness. There are no facts showing that Defendant should have known that de los Santos had a propensity to assault and batter patients. The demurrer is sustained as to the fifth cause of action. Defendant to give notice.
51	Flynn vs. FCA US, LLC 23-01333219	Motion to Set Aside/Vacate Dismissal NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
52	Wysocki vs. Hoang 25-01512631	Motion to Be Relieved as Counsel of Record Attorney Yuri Voronin and Wade Litigation, APC (together, "Moving Counsel") move to be relieved as counsel for Defendants John Hoang, an individual, and John Hoang dba All American Builders & Contractors. The unopposed motion is GRANTED. The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by Moving Counsel, Attorney Yuri Voronin and Wade Litigation, APC, and finds that Moving Counsel have complied with the requirements of Rule 3.1362. The court's order shall become effective upon the filing of a Proof of Service showing service of the order on Defendants John Hoang, an individual, and John Hoang dba All American Builders & Contractors. Moving Counsel to give notice within 5 court days of the hearing.
54	Reichert vs. Wightman 25-01481529	2x Motions to Be Relieved as Counsel of Record The motions of attorney Casey R. Johnson to withdraw as attorney of record for Plaintiffs Jeffery Reichert (ROA 55) and Nicolette Reichert, individually and as Guardian ad Litem for Asa Reichert and Violet Reichert (ROA 46) are DENIED WITHOUT PREJUDICE. California Rule of Court, rule 3.1362(d), requires moving counsel to serve the notice of motion, motion, declaration, and proposed order on the client and all parties who have appeared in the action. The proof of service submitted with the moving papers does not demonstrate that the clients were served. In addition, moving counsel has not lodged a proposed order (Form MC-053) as required by California Rules of Court, rule 3.1362(e), and the record does not

		demonstrate that the proposed order was served on the clients as required by rule 3.1362(d). Moving attorney to give notice.
55	Patricia Long as Trustee for the Finished Barn Family Trust vs. Global Discoveries Ltd., LLC 22-01268095	Motion for Attorney Fees NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
57	Xia vs. Placentia Yorba Linda Unified School District 24-01403405	Demurrer to Amended Complaint & Motion to Strike Portions of Complaint Defendant California Commission on Teacher Credentialing (“Commission”) demurs to the First Amended Complaint (“FAC”) filed by Plaintiffs Ye Ying Xia and Aretha Li. The demurrer is SUSTAINED to the fourth cause of action for failure to exercise reasonable diligence to discharge mandatory duty and the fifth cause of action for waste of taxpayer funds. Plaintiff’s request for judicial notice is denied. The requested documents are not matters for which judicial notice is required or permitted. (See Evid. Code, §§ 451-452.) Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it on or before June 19, 2026. Plaintiffs are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) <u>Compliance with the Government Claims Act</u> In order to pursue a tort claim against a public entity or public employee under California state law, Plaintiffs must establish that they have complied with the claim presentation requirements of the Government Claims Act. (Gov. Code, §§ 945.4, 950.2.) “Before a civil action may be brought against a public entity [or public employee], a claim must first be presented to the public entity and rejected.” (<i>Ocean Servs. Corp. v. Ventura Port District</i> (1993) 15 Cal.App.4th 1762, 1775; Gov. Code, § 950.2.) “[F]ailure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that

	entity.” (<i>City of Stockton v. Superior Court</i> (2007) 42 Cal. 4th 730, 738 [citation and internal quotations omitted].) Compliance with the claims presentation requirement is an element of a plaintiff’s claim. (<i>State of California v. Superior Court (Bodde)</i> (2004) 32 Cal.4th 1234, 1243-44 [“Timely claim presentation is not merely a procedural requirement, but is ... a condition precedent to plaintiff’s maintaining an action against defendant ... and thus an element of the plaintiff’s cause of action.”] [citation and internal quotation marks omitted].) The Government Claims Act requires plaintiffs to file a written claim with the public entity within six months of the accrual of the cause of action, as a prerequisite to filing a civil claim. (Gov. Code, § 911.2.) The date of accrual is the date of the occurrence of the last fact essential to the cause of action. (<i>Howard Jarvis Taxpayers Ass’n v. City of La Habra</i> (2001) 25 Cal.4th 809, 815, as modified July 18, 2001.) “The date of accrual of a cause of action marks the starting point for calculating the claims presentation period. [Citation.] The general rule for defining the accrual of a cause of action sets the date as the time when, under the substantive law, the wrongful act is done, or the wrongful result occurs, and the consequent liability arises. [Citation.] In other words, it sets the date as the time when the cause of action is complete with all of its elements [citations]—the elements being generically referred to by sets of terms such as wrongdoing or wrongful conduct, cause or causation, and harm or injury [citations]. [Citation.] A cause of action accrues for purposes of the filing requirements of the Tort Claims Act on the same date a similar action against a nonpublic entity would be deemed to accrue for purposes of applying the relevant statute of limitations.” (<i>K.J. v. Arcadia Unified School District</i> (2009) 172 Cal.App.4th 1229, 1239, as modified (May 5, 2009) disapproved of on other grounds by <i>Rubenstein v. Doe No. 1</i> (2017) 3 Cal.5th 903.) The FAC alleges that after receiving the investigation report the School District submitted to California Department of Education, Education Equity Uniform Complaint Procedures Office (“CDE”) in August 2020, Plaintiff Xia felt the need to report the misconduct of the School District’s educators. (FAC ¶ 52.) In September 2020, Plaintiff filed a complaint with the Commission against Mr. McAlindin, Ms. Balde, Mrs. Yaung, Mr. Louie, and Mr. King. (<i>Ibid.</i>) The Commission received Plaintiff Xia’s complaint forms and affidavit on October 5, 2020. (<i>Ibid.</i>) Ms. Giannini, a Commission investigator, investigated Plaintiff Xia’s complaint from November 13 to November 20, 2020. (<i>Id.</i> at ¶ 53.) Plaintiff Xia expressed concerns over Ms. Giannini’s interpretation of the evidence. (<i>Id.</i> at ¶¶ 53, 101.) Ms. Giannini concluded her investigation on November 20, 2020. (<i>Id.</i> at ¶ 53.) On December 23, 2020, the Commission notified Plaintiff Xia that no adverse action was warranted against the individuals named in the complaint. (<i>Ibid.</i>) In March 2021, Plaintiff Xia filed a citizen complaint against the CTC investigator for her failure to conduct a thorough investigation. (FAC ¶ 54.) Plaintiff Xia received a letter dated April 1, 2021 which did not explain the basis for the Commission’s decision, but stated that Plaintiff could resubmit her complaint. (<i>Id.</i>) Plaintiff Xia submitted a second complaint to the Commission against Mr. King, Ms. Yaung, Mr. Louis, Ms.. Blade, and Mr. McAlindin in February 2023. (FAC ¶ 60.) On August 23, 2023, the Commission refused to take adverse action against the individuals against whom Plaintiff Xia complained. (<i>Ibid.</i>) The FAC alleges that Plaintiff believed the CDE’s decision played a key
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	role in the Commission’s rejection of her complaint. (<i>Ibid.</i>) Plaintiffs filed a Government Claim against the Commission with the Office of Risk Insurance Management at the California Department of General Services on November 7, 2023. (FAC ¶ 9.) To the extent Plaintiffs’ causes of action are based on the Commission’s December 23, 2020 and April 1, 2021 decisions, the claims are untimely. On the face of the FAC, the claims are barred because Plaintiffs failed to present a timely written claim to the Commission. The doctrine of equitable tolling “cannot be invoked to suspend [Government Code] section 911.2’s six-month deadline for filing a prerequisite government claim” because “the six-month period of section 911.2 is not a statute of limitations [citation] to which tolling rules might apply.” (<i>Willis v. City of Carlsbad</i> (2020) 48 Cal.App.5th 1104, 1121.) Furthermore, “[a]pplication of tolling to the claims presentation deadline would undercut the public policies and purposes that require that deadline be ‘strict[ly]’ applied.” (<i>Id.</i> at p. 1122.) Plaintiffs have alleged a timely presentation of claims based on the Commission’s August 23, 2023 decision. The Commission contends that the August 23, 2023 decision cannot form a basis for Plaintiffs’ claims because the affidavit upon which the decision is based is similar to the affidavit Plaintiff Xia filed in 2020. The Commission argues that because the alleged wrongful act did not change, the date of accrual remains December 2020. There are no facts alleged in the FAC or any facts of which the Court may take judicial notice to support this contention. Additionally, the case to which the Commission cites, <i>K.J., supra</i>, 172 Cal.App.4th at 1239, does not support this proposition. The demurrer is overruled to the extent it is based on Plaintiffs’ failure to file a timely government claim in connection with the Commission’s August 23, 2023 decision. <u>Fourth Cause of Action for Failure to Exercise Reasonable Diligence to Discharge Mandatory Duty and Fifth Cause of Action for Waste of Taxpayer Funds</u> Plaintiffs concede that they failed to sufficiently allege a mandatory duty by the Commission as well as allege facts to establish that Plaintiffs have standing to bring a taxpayer cause of action. (Opp. at 13:2-3, 14:23-24.) The demurrer is sustained as to the fourth and fifth causes of action. Defendant California Commission on Teacher Credentialing to give notice. Defendant California Commission on Teacher Credentialing (“Commission”) moves to strike the First Amended Complaint (“FAC”) filed by Plaintiffs Ye Ying Xia and Aretha Li in its entirety, paragraphs 104, 109, and 110, and the prayer for relief as to the Commission. The motion is GRANTED in part and DENIED in part. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) The October 22, 2024 Minute Order sustained Defendant Placentia-Yorba Linda Unified School District’s demurrer to Plaintiffs Ye Ying Stella Xia and Aretha Li’s Complaint with 15 days leave to amend and ordered the Clerk to give notice.
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		(ROA 88.) The Clerk gave notice of the court’s October 22, 2024 Order to Plaintiffs by mail and electronic mail. (ROA 89.) Because it is not certain that Plaintiffs, who are self-represented, affirmatively consented to electronic service, the court calculates Plaintiffs’ FAC filing deadline using the five-day period associated with notice by mail. (Cal. Rule of Court, Rule 2.251; Code Civ. Proc., § 1010.6.)] Accordingly, Plaintiffs had until November 12, 2024 to file an amended complaint. Fifteen days from October 22, 2024 is November 6, 2024. The five day extension for service by mail brings the filing deadline to November 11, 2024. (Code Civ. Proc., § 1013.) Because November 11, 2024 was a court holiday, the period is extended to November 12, 2024. (Cal. Rules of Ct., rule 1.10, subd. (b).) The motion to strike the FAC in its entirety is denied. Plaintiffs timely filed the FAC. As discussed in the concurrent ruling on the Commission’s demurrer, Plaintiffs have complied with the Government Claims Act with regard to the Commission’s August 23, 2023 refusal to take adverse action against the individuals against whom Plaintiff Xia complained. The motion to strike Plaintiffs’ request for general or special damages is denied. Plaintiffs do not dispute that punitive damages are unavailable against the Commission. The motion to strike is granted to extent punitive damages are sought against the Commission. Defendant California Commission on Teacher Credentialing to give notice.
58	Nasser vs. Cotton Links LLC 22-01276603	Motion for Terminating Sanctions NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
59	Beghtol vs. Saddleback Memorial Medical Center 23-01316589	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment and Summary Adjudication brought by Defendant Saddleback Memorial Medical Center is DENIED, in whole. Defendant’s evidentiary objections fail to comply with California Rules of Court rule 3.1354, as they are not consecutively numbered. (Cal. Rules of Court rule 3.1354(b).) Nonetheless, the objections were reviewed and independently consecutively numbered. The Court OVERRULES Objections Nos. 1, 3 through 4 and 6 through 9. The statement from Plaintiff’s Counsel which indicates Exhibit 1 “is a true and correct copy of excerpts of Defendant’s document production,” is sufficient to authenticate the documents as against Defendant. (See ¶2 of Gleason Declaration [ROA No. 266].) Additionally, the statement is supported by sufficient personal knowledge and foundation, given Mr. Gleason is an attorney of record for Plaintiff in this action. (¶1 of Gleason Declaration [ROA No. 266].) Thereafter, while Defendant repeatedly asserts that Plaintiff’s declaration should be dismissed as “uncorroborated and self-serving,” the statements targeted within Objections Nos. 3 through 4 and 6 through 9, adequately describe conduct and experiences <i>by Plaintiff</i>, rather than mere legal conclusions or subjective beliefs.

		With respect to Objection Nos. 2 and 5, the identified evidence was not cited by Plaintiff within his Separate Statement and, consequently, was not reviewed. Thus, these objections are not material to the resolution of this motion and rulings are unnecessary. (Code Civ. Proc., § 437c, subd. (q).) Initially, Defendant seeks adjudication of Plaintiff's disability related claims, based on its assertion Plaintiff was never diagnosed with a disability. In support of this argument, Defendant cites SSUF Nos. 10 and 11, wherein it asserts "Plaintiff was never diagnosed with 'long-haul COVID-19'" and "Plaintiff only tested positive for COVID-19 one time." (See SSUF Nos. 10-11 [ROA No. 258].) Defendant's identified facts rely on the lack of a diagnosis and positive test results; however, the stated facts do not establish that Plaintiff was neither "disabled" nor perceived as such, as relevant under FEHA. "Under FEHA, a person is 'physically disabled' when he or she has a physiological condition that 'limits a major life activity.'" (<i>Sandell v. Taylor-Listug, Inc.</i> (2010) 188 Cal.App.4th 297, 311 (<i>Sandell</i>); See also Gov. Code, § 12926, subd. (m)(1)(B).) "[A] qualifying disease or condition 'limits a major life activity if it makes the achievement' of the activity 'difficult.'" (<i>Sandell, supra</i>, 188 Cal.App.4th at p. 311.) Additionally, "major life activities," "shall be broadly construed and includes physical, mental, and social activities and working." (Gov. Code, § 12926, subd. (m)(1)(B)(iii). Similarly, a "physical disability" includes "[b]eing regarded or treated by the employer or other entity covered by this part as having, or having had, any physical condition that makes achievement of a major life activity difficult." (Gov. Code, § 12926, subd. (m)(4).) While Defendant asserts Plaintiff was never diagnosed with "long haul COVID-19" and only tested positive for COVID-19 once, Defendant cites no authority which requires a formal diagnosis, to establish a disability. Based on the authority cited above, the relevant question is whether Plaintiff suffered from a condition that affected a major life activity or was perceived as such. (See <i>Sandell v. Taylor-Listug, Inc.</i> (2010) 188 Cal.App.4th 297, 311 and <i>Moore v. Regents of University of California</i> (2016) 248 Cal.App.4th 216, 242.) As Defendant offered no evidence or analysis relevant to these questions, Defendant failed to meet its initial burden, as to this portion of the motion. Additionally, regardless, the evidence indicates a triable issue exists, as to whether Plaintiff suffers from long-haul COVID-19 and whether the same qualifies as a disability, for purposes of FEHA: Despite the lack of a formal diagnosis, Plaintiff testified that an ER doctor used the phrase "long-haul COVID," while treating Plaintiff. (Defense Exhibit 1: Beghtol Deposition: 109:18-23 [ROA No. 248].) Per Plaintiff, the ER doctor indicated he had symptoms of long-haul COVID. (¶3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 108:15-21 [ROA No. 266].) Plaintiff also testified that he communicated to Defendant, that he was suffering from long-haul COVID-19 and needed accommodation, in the form of his schedule not being stacked. (Defense Exhibit 1: Beghtol Deposition: 109:24-110:6 [ROA No. 248]; See also ¶3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 108:7-14 and 118:7-14 [ROA No. 266].)
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		Plaintiff testified that his long-haul COVID 19 symptoms include shortness of breath, trouble breathing, headaches and lightheadedness,” which he still experiences today. (¶3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 121:10-15 [ROA No. 266].) Per Plaintiff, the symptoms of his “long-haul” COVID caused him to call out from work on multiple occasions. (<i>Id.</i> at p. 183:9-20.) Additionally, the evidence indicates Plaintiff informed Defendant that his absences were due to long-haul COVID symptoms. (<i>Id.</i> at p. 183:21-24.) Based on the above, a triable issue exists, as to whether Plaintiff suffers from a condition that affects a major life activity. As this is the sole basis for seeking adjudication of the First and Second Causes of Action, adjudication is DENIED, as to Issues Nos. 1 and 2. With respect to the Fourth Cause of Action, Defendant articulates two facts which it indicates relate <i>specifically</i> to the claim for Age Discrimination. (See Motion: 5:3-7); however, Defendant offers no further legal argument, relating to the same. This brief portion of the motion cites ¶24 of the Second Amended Complaint, which alleges as follows: “On or about 2016, under the supervision of Defendant Weber, Defendants...began providing more hours to part-time, younger and less expensive respiratory therapists in violation of company policy and to the detriment of full-time, older and more expensive respiratory therapists such as Plaintiff.” (¶24 of SAC [ROA No. 115] [emphasis added].) In an apparent attempt to challenge the above, Defendant offers SSUF No. 14, which states: “Plaintiff was born on July 10, 1966.” (See SSUF No. 14 [ROA No. 258].) Additionally, Defendant offers SSUF No. 15, which states: “At all relevant times, Defendant’s Respiratory Therapy Department had no policy against scheduling part-time employees over full-time employees during slow shifts.” (See SSUF No. 15 [ROA No. 258].) The above facts do not defeat Plaintiff’s claim that younger employees were favored and, thus, this argument fails. With respect to the Fifth Cause of Action, Defendant seeks adjudication on the basis “Plaintiff never went on ‘medical leave’ for COVID-19.” (See SSUF No. 13 [ROA No. 258].) Based on the same, Defendant asserts that Plaintiff cannot establish he exercised his right to take leave under the CFRA, as required. (Motion: 7:21-26 [ROA No. 251].) To establish Plaintiff “never went on medical leave for COVID-19,” Defendant cites the <i>same</i> evidence relied on, to establish Plaintiff was never diagnosed with “long-haul” COVID-19 and only tested positive for COVID-19 once. (Compare SSUF Nos. 10-12 and SSUF No. 13.) Defendant offers no explanation, as to how Plaintiff’s medical records, testimony regarding his treatment for COVID-19, and requests for accommodation, establish he did not take any leave. The sole <i>new</i> evidence cited, to support that medical leave was not taken, is Defendant’s Exhibit 54 which, per the Declaration of Michelle Gutierrez, consists of Plaintiff’s pay stubs from the period between May 6, 2019, to May 6, 2022. (¶50 of Gutierrez Declaration [ROA No. 246].) While the entirety of Plaintiff’s pay stubs for the above period has purportedly been attached, Defendant offers no testimony or declaratory evidence which explains their meaning or offers assistance to the Court, in their interpretation.
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	While the implication is that CFRA leave would appear within these paystubs, the Court is left to speculate as to how. In addition to the above, the evidence offered by Defendant indicates Plaintiff took time off in January of 2022, due to COVID-19 symptoms. (Defense Exhibit 1: Beghtol Deposition: 279:16-281:8 [ROA No. 248]; See also Exhibit 29.) The evidence likewise indicates this fact was communicated to Defendant. (<i>Ibid.</i>) Defendant offers no authority or further discussion, which establishes the above cannot qualify as CFRA leave, for purposes of this claim. In <i>Moore v. Regents of University of California</i> (2016) 248 Cal.App.4th 216, the Court of Appeal found testimony from plaintiff which indicated she “never used, or intended to use, a protected leave during her employment” insufficient to establish the plaintiff “did not ‘exercise[] her right to take leave for a qualifying CFRA purpose.’” (<i>Id.</i> at p. 248.) The Court explained: “The relevant question with respect to this element is not whether a plaintiff expressly requested <i>CFRA</i> leave, but, rather, whether a plaintiff ‘exercised <i>her right to take leave</i>’ and whether the purpose for the leave sought was ‘qualifying CFRA purpose.’” (<i>Id.</i> at pp. 248-249.) Defendant offers no analysis of the California Family Rights Act and, consequently, Defendant has not established that Plaintiff’s absences in January of 2022, did not arise from a “qualifying CFRA purpose.” Next, Defendant asserts that <i>several</i> of Plaintiff’s claims fail, as Defendant had a legitimate basis for terminating Plaintiff’s employment. Initially, while Defendant seeks to challenge <i>ten</i> different causes of action on this basis, it offers legal authority relevant to only <i>three</i> of the identified claims. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.) As noted by Defendant, to establish a claim for disability discrimination, Plaintiff must establish he “was subjected to an adverse employment action because of the disability or perceived disability.” (<i>Sandell v. Taylor-Listug, Inc.</i> (2010) 188 Cal.App.4th 297, 310 [Third Cause of Action].) Similarly, to establish a claim for age discrimination, Plaintiff must establish he “was performing satisfactorily at the time of the adverse action” and “suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was replaced by someone significantly younger than the plaintiff.” (<i>Sandell v. Taylor-Listug, Inc.</i> (2010) 188 Cal.App.4th 297, 321 [Fourth Cause of Action].) Further, to state a claim for CFRA retaliation, Plaintiff must establish that he “suffered an adverse employment action, such as termination, fine, or suspension, because of [his] exercise of [his] right to CFRA [leave].” (<i>Soria v. Univision Radio Los Angeles, Inc.</i> (2016) 5 Cal.App.5th 570, 604 [Fifth Cause of Action].) “California uses the three-stage burden-shifting test established by the United States Supreme Court for trying claims of discrimination based on a theory of
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		disparate treatment.” (<i>Wilkin v. Community Hospital of Monterey Peninsula</i> (2021) 71 Cal.App.5th 806, 820.) “A defendant employer’s motion for summary judgment slightly modifies the order of these [<i>McDonnell Douglas</i>] showings. If, as here, the motion for summary judgment relies in whole or in part on a showing of nondiscriminatory reasons for the discharge, the employer satisfies its burden as moving party if it presents evidence of such nondiscriminatory reasons that would permit a trier of fact to find, more likely than not, that they were the basis for the termination. [Citations.] To defeat the motion, the employee then must adduce or point to evidence raising a triable issue, that would permit a trier of fact to find by a preponderance that intentional discrimination occurred. [Citations.] In determining whether these burdens were met, we must view the evidence in the light most favorable to plaintiff, as the nonmoving party, liberally construing her evidence while strictly scrutinizing defendant’s.” (<i>Wilkin v. Community Hospital of Monterey Peninsula</i> (2021) 71 Cal.App.5th 806, 822.) The <i>McDonnell Douglas</i> burden shifting framework, similarly, applies to claims for retaliation. (See <i>Moore v. Regents of University of California</i> (2016) 248 Cal.App.4th 216, 244.) Having reviewed the entirety of the evidence, Defendant met its moving burden, by presenting evidence of “nondiscriminatory reasons for the discharge....” (<i>Wilkin v. Community Hospital of Monterey Peninsula</i> (2021) 71 Cal.App.5th 806, 820; See SSUF Nos. 2 through 9.) Consequently, “[t]he burden therefore shifted to [Plaintiff] to ‘adduce or point to evidence raising a triable issue, that would permit a trier of fact to find by a preponderance that intentional discrimination [or retaliation] occurred.’” (<i>Wilkin v. Community Hospital of Monterey Peninsula</i> (2021) 71 Cal.App.5th 806, 823.) “[P]laintiff must offer evidence that the employer’s stated reason is either false or pretextual, or evidence that the employer acted with discriminatory animus, or evidence of each which would permit a reasonable trier of fact to conclude the employer intentionally discriminated.” (<i>Faust v. California Portland Cement Co.</i> (2007) 150 Cal.App.4th 864, 886.) Here, Plaintiff offers evidence which suggests the stated reasons for his termination were pretextual. Initially, despite Plaintiff’s long disciplinary history, Plaintiff’s most recent employee reviews rated him highly. (See ¶2 of Gleason Declaration and Exhibit 1 thereto, at SMMC000003-000017 [ROA No. 266].) Per his final review, Plaintiff “frequently works as a relief supervisor” and “can be counted on to work well and independently in all critical care units.” (<i>Id.</i> at SMMC000006-7.) While Plaintiff’s supervisor acknowledged that performance reviews should communicate if improvement is necessary, he confirmed there was nothing in the above performance review which would have notified Plaintiff he was not meeting performance expectations. (¶5 of Gleason Declaration and Exhibit 4 thereto, Weber Deposition: 44:11-45:9 and 46:3-47:6 [ROA No. 266].) Per Plaintiff’s supervisor, the above review indicates Plaintiff was meeting performance expectations, and nothing indicates concern regarding patient care, barcoding, or attendance. (<i>Id.</i> at 45:1-46:2.)
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		Plaintiff’s supervisor also testified that “through to the date of his termination” he trusted Plaintiff to “work in critical care settings at Saddleback.” (¶5 of Gleason Declaration and Exhibit 4 thereto, Weber Deposition: 31:8-13 [ROA No. 266].) Further of note, while Plaintiff’s termination letter references two incidents which purportedly occurred on March 16, 2022, and March 20, 2022, as examples of unsatisfactory job performance (See Defense Exhibit 1: Exhibit 9 to Beghtol Deposition [ROA No. 248]), a March 23, 2022, email from Plaintiff’s supervisor to Human Resources, states: “Nothing extraordinary to report from performance/behavior standpoint.” (¶2 of Gleason Declaration and Exhibit 1 thereto, at SMMC002158 [ROA No. 262].) This statement was made in response to an email from Human Resources, stating that Plaintiff’s termination document had been finalized, but nonetheless asking “[h]as there been any other recent incidents regarding Bob at all?” (<i>Ibid.</i>) The above evidence calls into question the motivation for Plaintiff’s termination, as it indicates: (1) The decision to terminate Plaintiff predates the above incidents; and (2) Plaintiff’s supervisor did not believe any significant performance failures occurred in March. Notably, a fact finder “can take account of manifest weaknesses in the cited reasons in considering whether those reasons constituted the real motive for the employer’s actions, or have instead been asserted to mask a more sinister reality.” (<i>Scheer v. Regents of the University of California</i> (2022) 76 Cal.App.5th 904, 921.) With respect to barcoding, the evidence indicates that Plaintiff was never warned that a failure to improve could result in termination. (¶3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 170:9-14[ROA No. 266]; ¶5 of Gleason Declaration and Exhibit 4 thereto, Weber Deposition: 104:8-105:8 [ROA No. 266].) In fact, when asked if he ever warned Plaintiff that he could be terminated due to his barcoding issues, Plaintiff’s supervisor stated: “I would say that it would be more of a counseling for barcoding.” (<i>Id.</i> at 104:8-13.) This testimony suggests barcoding failures are not, in Defendant’s eyes, a basis for termination. Additionally, Plaintiff’s supervisor testified that no written policies existed regarding barcoding, and the 95% compliance rate is merely a goal. (¶5 of Gleason Declaration and Exhibit 4 thereto, Weber Deposition: 95:3-8 [ROA No. 266].) The evidence also indicates that barcoding was not always possible. Per Plaintiff’s supervisor, barcoding could not be accomplished if the patient was in distress and a computer or scanner was not available. (¶5 of Gleason Declaration and Exhibit 4 thereto, Weber Deposition: 75:15-76:4 [ROA No. 266].) Per Plaintiff his numbers were consistently low because he manually entered “scanner not available, emergency, unreadable barcodes” in such instances, rather than forgoing treatments. (¶3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 287:20-288:1 [ROA No. 266].) Similarly, the evidence indicates that Plaintiff was not warned that he was at risk of termination, due to attendance issues, contrary to Defendant’s written policy. (See also ¶4 of Gleason Declaration and Exhibit 3 thereto, LeGuern Deposition 183:5-15 [ROA No. 266].) Per Defendant’s written policies, a verbal warning was to be given, at five unscheduled absences. (¶2 of Gleason Declaration and Exhibit 1 thereto, at SMMC000404 [ROA No. 266].) “This is done to make the
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	employee aware of their attendance issues and to help avoid further disciplinary action.” (<i>Ibid.</i>) “Once these thresholds are exceeded our department will issue a ‘WRITEN’ warning that is sent to HR to be placed in your file. Progressive discipline will continue until the behavior is corrected. Further attendance and or other issues may lead to termination.” (<i>Ibid</i> [emphasis altered from original].) While Defendant offered evidence of “Verbal Counseling” regarding this issue in October of 2016, Defendant’s Person Most Knowledgeable testified that, other than the termination document itself, there was no documentation showing Plaintiff was informed that his excessive absences were placing him at risk of discipline. (See ¶4 of Gutierrez Declaration [ROA No. 246] and Defense Exhibit 8 [ROA No. 248] [2016 Verbal Counseling] and ¶4 of Gleason Declaration and Exhibit 3 thereto, LeGuern Deposition: 183:5-15 [ROA No. 266].) In addition to the above, Plaintiff offered evidence which indicates Defendant took near-immediate action to begin Plaintiff’s termination, shortly after Plaintiff documented potential negligence resulting in a patient death. Per Plaintiff, he documented an incident on February 6, 2022, wherein he noted that a nurse “did not turn on the supply of oxygen to the patient while the patient was on a breathing machine.” (¶6-¶7 of Beghtol Declaration [ROA No. 264].) Plaintiff additionally indicates he reported his findings to his supervisors. (¶7-¶8 of Beghtol Declaration [ROA No. 264].) Three days after Plaintiff’s initial report and on the same day Plaintiff purportedly met with his supervisor and Human Resources to discuss the incident, Defendant drafted what would become Plaintiff’s termination. (¶2 of Gleason Declaration and Exhibit 1 thereto, at SMMC003068 [ROA No. 262].) The drafted document notes the relevant patient died and references a concurrent allegation that Plaintiff referred to the relevant nurse as “stupid,” however, Plaintiff denies the accusation. (¶8 of Beghtol Declaration [ROA No. 264]; See also ¶3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 66:1-21 [ROA No. 266].) Here, while Plaintiff has a complicated disciplinary record, as indicated above, Plaintiff has submitted evidence which suggests Defendant’s stated reasons for termination were manufactured. This evidence, in addition to temporal proximity, are relevant to establishing pretext, and requires balancing by the factfinder. (<i>Arteaga v. Brink’s, Inc.</i> (2008) 163 Cal.App.4th 327, 353-354.) Of note, within the Reply, Defendant asserts the above argument is contrary to the allegations in the Complaint. (Reply: 5:28-6:15 [ROA No. 268].) Defendant correctly notes the Complaint alleges Plaintiff “reported patient safety issues relating to Defendants...barcoding procedures.” (¶107 and ¶123 of SAC [ROA No. 115].) However, as the Complaint earlier references the alleged incident “where Plaintiff was accused of calling a nurse ‘stupid’ because he failed to plug in oxygen for a patient resulting in a fatality” and alleges Plaintiff met with Human Resources regarding the incident, the recommendation is to <i>liberally</i> construe the Complaint and find the theory encompassed therein. (See ¶47-¶49 of SAC [ROA No. 115].) “In general, ‘new factual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them. In making this determination, courts look to whether the new factual issues present different theories of recovery or rest on a fundamentally different factual basis.” (<i>Agustin v. Golden Empire Transit Dist.</i> (2025) 116 Cal.App.5th 426, 443.) “[C]ourts are encouraged to take a liberal approach in
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	determining the scope of the pleadings, so long as those pleadings provide adequate notice to the opposing party of the theories on which relief is generally being sought.” (<i>Jones v. Awad</i> (2019) 39 Cal.App.5th 1200, 1211.) Based on all the above, triable issues exist and the request to adjudicate Issues Nos. 3 through 12 are DENIED. As noted by <i>multiple</i> California authorities, “many employment cases present issues of intent and motive, issues not determinable on paper” and “[s]uch cases ‘are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be.’” (<i>Zamora v. Security Industry Specialists, Inc.</i> (2021) 71 Cal.App.5th 1, 33; See also <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 286 and <i>Hodges v. Cedars-Sinai Medical Center</i> (2023) 91 Cal.App.5th 894, 904.) Finally, Defendant challenges the Fifteenth through Twentieth Causes of Action, which allege various Labor Code violations, not specifically identified by Defendant in the motion. In support of this portion of the motion, Defendant correctly notes that “premium pay” is a remedy for a failure to provide meal and rest breaks. (<i>Naranjo v. Spectrum Security Services, Inc.</i> (2022) 13 Cal.5th 93, 106-107; See also <i>Donohue v. AMN Services, LLC</i> (2021) 11 Cal.5th 58, 67.) The legal argument offered by Defendant addresses only meal and rest breaks; however, meal and rest breaks are the basis, only, of Plaintiff’s Seventeenth and Eighteenth Causes of Action. (See ¶201, ¶203, ¶208 and ¶210 of SAC [ROA No. 115].) Although not specified by Defendant, Defendant appears to rely on a testimony by Plaintiff, wherein he conceded that, when talking about “adding overtime to [his] time card” he was exclusively trying to add in the time for missed meal breaks [and] missed rest breaks.” (Defense Exhibit 1: Beghtol Deposition: 60:8-13 [ROA No. 248].) Plaintiff also testified that, when referencing “on call duty” he was referring to having to answer the phone, while on meal and rest breaks. (<i>Id.</i> at 131:24-132:11.) The above testimony is cited solely within SSUF No. 16, despite this fact making no reference to the above or otherwise asserting that <i>all</i> of Plaintiff’s claims arise from missed meal and rest breaks. (See SSUF No. 16 [ROA No. 258 (at p. 186 of PDF)].) Additionally, Defendant made no effort to demonstrate that overtime, “on-call duty” and meal and rest breaks, are the sole basis of <i>all</i> Labor Code claims. Per the Complaint, Plaintiff alleges Defendant failed to pay minimum wages and overtime wages, as it “failed to pay proper compensation for all hours worked, including time spent on mandatory education, time spent on on-call duty, time spent reporting to work but having their shifts cancelled or otherwise not being put to work, time worked during missed and/or interrupted meal periods as herein alleged, and/or time that was rounded to Defendant’s benefit without paying Plaintiff for actual time worked.” (¶180 of SAC [ROA No. 115]; See also ¶192 of SAC.) Following the above allegations, the Complaint asserts Defendant failed to provide accurate itemized wage statements and Plaintiff seeks waiting time penalties. (¶215 and ¶223 of SAC [ROA No. 115].)
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		Based on the above, as Defendant fails to address the entirety of Plaintiff's allegations, the request for adjudication of the Fifteenth, Sixteenth, Nineteenth and Twentieth Causes of Action fails. Finally, in seeking adjudication of the meal and rest break claims, Defendant relies on the following testimony from Plaintiff: Q: When you were terminated, were you given, that day or within a couple of days, a final paycheck by Memorial? A: They had one for me that day. Q: Okay. And that paycheck was just to give you the money that was owed to you up, you know, through that pay period and your accrued PTO; correct? A: Correct. (Defense Exhibit 1: Beghtol Deposition: 197:8-16 [ROA No. 248].) Relying solely on the above, Defendant asserts Plaintiff conceded that he was paid "all of the money [Defendant] owed him." (See SSUF No. 16 [ROA no. 258 (at p. 186 of PDF)].) The cited deposition testimony does <i>not</i> clearly support Defendant's position as Plaintiff was not asked whether he believed he was paid "all money owed to him," relating to his Labor Code claims. As noted by the Court in <i>Turley v. Familian Corp.</i> (2017) 18 Cal.App.5th 969, "to the extent that there is any ambiguity in the evidence, as Justice Chin colorfully put it, 'the task of disambiguating ambiguous utterances is for trial, not for summary judgment.'" (<i>Id.</i> at p. 978.) As explained by the Court in <i>Scaif v. D.B. Log Homes, Inc.</i> (2005) 128 Cal.App.4th 1510, "the cases are clear that summary judgment should not be granted on the basis of 'tacit admissions or fragmentary and equivocal concessions.'" (<i>Id.</i> at p. 1523.) Additionally, in contrast to the above, Plaintiff testified that he "would clock out for the lunch period, even though [he] didn't get one because they wouldn't pay me my hours unless I clocked in and out for that lunch period." (§3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 274:13-24 [ROA No. 266].) Plaintiff also indicated that he would occasionally stay clocked in and then he "would manually put in a – a break." (<i>Id.</i> at 275:19-24.) The above testimony sufficiently indicates that Plaintiff was <i>not</i> paid for all meal and rest breaks, as required. Thereafter, Defendant cites <i>Donahue v. AMN Services, LLC</i> (2021) 11 Cal.5th 58, in an apparent attempt to demonstrate it nonetheless fulfilled its requirements, regarding meal and rest breaks. <i>Donahue</i> explained that an employer satisfies its meal and rest break obligations "if it relieves its employees of all duty, relinquishes control over their activities and permits them a reasonable opportunity to take an uninterrupted 30-minute break, and does not impede or discourage them from doing so...." (<i>Id.</i> at p. 67.) "[T]he employer is not obligated to police meal breaks and ensure no work thereafter is performed." (<i>Ibid.</i>) "There is no meal period violation if an employee voluntarily chooses to work during a meal period after the employer has relieved the employee of all duty." (<i>Ibid.</i>) "The voluntariness of an employee's choice matters because 'an
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	employer may not undermine a formal policy of providing meal breaks by pressuring employees to perform their duties in ways that omit breaks.” (<i>Ibid.</i>) Here, Defendant seems to suggest that any missed meal and rest breaks were voluntary, given that Plaintiff signed a “Meal and Rest Rules Acknowledgment Form” in October of 2012. (§3 of Angel Declaration [ROA No. 242] and Defense Exhibit 4, Requests for Admission at No. 4 [ROA No. 248].) Defendant additionally cites deposition testimony where Plaintiff indicated he could not recall if anyone ever told him not to take a ten-minute rest period. (Defense Exhibit 1: Beghtol Deposition: 51:11-13 [ROA No. 248].) However, Plaintiff expressly testified that his supervisors and managers required him to answer emergency calls during his meal and rest breaks. (§3 of Gleason Declaration and Exhibit 2 thereto, Beghtol Deposition: 60:18-25 and 205:7-11 [ROA No. 266].) Plaintiff’s supervisor confirmed that Respiratory Therapists were required to carry their work-issued phone at all times, because people call for them for service. (§5 of Gleason Declaration and Exhibit 4 thereto, Weber Deposition 178:10-179:7 [ROA No. 266].) Defendant also offers the fact that “Plaintiff occasionally submitted missed meal and rest periods to Defendant’s timekeeping system, for which he was paid,” in an apparent attempt to demonstrate that <i>all</i> such missed breaks were compensated (See SSUF No. 18 [ROA No. 258 (p. 189 of PDF)]); however, the stated fact does not support this conclusion. Finally, Defendant asserts that, at all relevant times, “Defendant gave Plaintiff an itemized wage statement every pay period.” (See SSUF No. 20 [ROA No. 258 (p. 217 of PDF)].) Defendant cites Exhibit 54, which purportedly consists of Plaintiff’s pay stubs from May 6, 2019, through to May 6, 2022. (§50 of Gutierrez Declaration [ROA No. 246] and Exhibit 54 [ROA No. 248].) Defendant does not address the fact that Labor Code section 226, the statute upon which Plaintiff’s Nineteenth Cause of Action arises, requires “an accurate itemized statement in writing...” (Lab. Code, § 226, subd. (a).) Defendant offers no evidence to support the accuracy of the statements offered and, for the reasons stated above, a dispute as to the accuracy remains, given the dispute regarding whether Plaintiff was paid all premium wages owed. Based on the above, summary adjudication of Issues Nos. 13 through 18 are DENIED. In making the above ruling, the Court declined to consider new arguments which were asserted for the first time within the Reply or in unpermitted Supplemental Briefs. “It is elementary that points raised for the first time in a reply brief are not considered by the court.” (<i>Magic Kitchen LLC v. Good Things Intern. Ltd.</i> (2007) 153 Cal.App.4th 1144, 1161.) Additionally, the Court notes that the legal principles included within <i>Husband v. Target Corp.</i>, ---Cal.Rptr.3d ---, 2026 WL 1430244, cited by Defendant within a Supplemental Brief filed on May 27, 2026, are not new. (Supplemental Brief: 2:2-6 [ROA No. 274].)
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		Citing a 2008 case, the <i>Husband</i> Court noted: “An employer’s knowledge of an employee’s disability is a prerequisite to FEHA liability under any of those theories: An employer cannot discriminate against an employee on the basis of a disability if it does not <i>know</i> of that disability.” (<i>Husband v. Target Corp.</i>, --- Cal.Rptr.3d ----, 2026 WL 1430244, at p. 1, citing <i>Avila v. Continental Airlines, Inc.</i> (2008) 165 Cal.App.4th 1237, 1247.) Citing a 2017 case, the <i>Husband</i> Court further explained: “Where, as here, neither the employee nor a third party has disclosed the employee’s mental disability, ‘knowledge’ of that disability ‘will only be imputed to the employer’ through its observation of the ‘underlying facts’ ‘when the fact of disability is the <i>only</i> reasonable interpretation of the known facts.’” (<i>Husband v. Target Corp.</i>, --- Cal.Rptr.3d ----, 2026 WL 1430244, at p. 5, citing <i>Featherstone v. Southern California Permanente Medical Group</i> (2017) 10 Cal.App.5th 1150, 1167.) The above authority holds, essentially, that knowledge of a disability is required, prior to discrimination and retaliation – longstanding legal principles which Defendant could have raised prior to the opinion in <i>Husband</i>. Defendant asks the Court to apply the above argument herein; however, Defendant offered no evidence relevant to its knowledge of Plaintiff’s condition. Indeed, none of Defendant’s statements of undisputed fact, address or touch on Defendant’s purported knowledge of a disability. In <i>Husband</i>, it was undisputed that the plaintiff “never informed Target that he ha[d] bipolar disorder” and the sole question was whether Target should have <i>inferred</i> the existence of this disability, based on his behavior. (<i>Husband v. Target Corp.</i>, ---Cal.Rptr.3d ----, 2026 WL 1430244, at p. 6.) Here, in contrast, it is wholly unknown what Defendant knew or believed, with respect to Plaintiff’s condition. As indicated above, the sole evidence offered indicates Plaintiff informed Defendant he was suffering from “long-haul” COVID-19. While Defendant clearly takes the position that “long-haul” COVID-19 does not qualify for disability protection, as noted above, Defendant offered no legal argument or authority to support this conclusion. As the Court in <i>Husband</i> noted, where an employer moves for summary judgment, “the employer bears the initial burden to disprove an element of the plaintiff-employee’s prima facie case or to adduce evidence supporting a legitimate nondiscriminatory reason for its adverse employment action.” (<i>Husband v. Target Corp.</i>, ---Cal.Rptr.3d ----, 2026 WL 1430244, at p. 6.) To the extent Defendant wished to challenge the element of knowledge, it was obligated to raise that argument and supply evidence thereon, within its initial motion.